ISIAH KUFA
versus
ZIMBABWE REVENUE AUTHORITY
and
ZIMBABWE REVENUE AUTHORITY COMMISSIONER GENERAL CUSTOM EXERCISE
and
REGIONAL MANAGER ZIMBABWE REVENUE AUTHORITY
and
ZIMBABWE REVENUE AUTHORITY KAZUNGULA STATION MANAGER

HIGH COURT OF ZIMBABWE
TAKUVA J
HARARE, 17 November 2025 and 15 June 2026

Court Application

Applicant in person
T L Marange, for the respondents

TAKUVA J: This is an application for condonation of the late filing of a review application arising from decisions made under the Customs and Excise Act [*Chapter 23:02*] ("the Customs and Excise Act"). The applicant seeks the following relief:

> "1. Application for condonation of late filing of an application for review is hereby granted:
>
> 2. The Applicant is hereby granted leave to file his application for review within 10 days of this order.
>
> 3. There shall be no order as to costs."

BACKGROUND FACTS

The Applicant imported two motor vehicles, namely a 2012 Ford Ranger Double Cab bearing chassis number 6FPPXXMJ2PCD55777 and a 2016 Isuzu D-Max Blade Double Cab bearing chassis number MPATFS86JFT026938, which arrived at Kazungula Border Post in August 2023.

It is common cause that the vehicles were not cleared upon arrival. The Respondents contend that the Applicant failed to comply with statutory requirements relating to pre-clearance and payment of duty, resulting in the vehicles being detained under "Receipts for Items Held", issued on 3 August 2023 and 30 August 2023 respectively, in the name of one Simbani Zirumba. The vehicles were subsequently moved to a State warehouse pending clearance.

The Respondents further aver that the Applicant did not take steps to clear the vehicles within the prescribed period of sixty days, and consequently, in terms of the governing customs legislation, the vehicles became liable for disposal by public auction.

The Applicant, on the other hand, avers that on 3 January 2024, he applied to the Station Manager at Kazungula Border Post for an extension of time within which to pay duty and clear the vehicles. On 4 January 2024, he was requested to furnish proof of ownership to facilitate consideration of his request. He states that he complied with this request on 5 January 2024.

The Respondents dispute this sequence of events. They contend that the Applicant's initial communication, sent on 4 January 2024, lacked sufficient details to identify the vehicles, and that a request for further particulars was made on the same day. According to the Respondents, the Applicant only furnished adequate identifying documentation on 5 January 2024 at approximately 1516 hours, by which time the public auction commenced at 0830 hours that same day had already been concluded.

It is not disputed that the vehicles were sold by public auction on 5 January 2024. On 8 January 2024, the Applicant was formally advised that his request for an extension of time to pay duty had been unsuccessful. Dissatisfied with this outcome, the Applicant noted an internal appeal to the Regional Manager (the third Respondent), which was dismissed. A further appeal to the Commissioner General (the second Respondent) was also dismissed on 28 May 2024.

Subsequently, the Applicant received payment of excess proceeds arising from the auction of at least one of the vehicles, following an application for refund made in terms of the applicable statutory framework.

The present application arises from the Applicant's challenge to the lawfulness of the decision-making process culminating in the disposal of the vehicles, as well as his application for condonation of the late filing of a review application. The Applicant attributes the delay to

ill health, while the Respondents contend that the claim has prescribed and that the Applicant has failed to demonstrate sufficient cause for condonation.

ANALYSIS AND DETERMINATION

The Respondents raised three preliminary points which, if upheld, are dispositive of the matter. The court shall proceed to deal with them.

Prescription

The central issue raised by the Respondents is that the Applicant's claim has prescribed in terms of s 196(2) of the Customs and Excise Act, which imposes an eight-month time bar

not in dispute that within which proceedings must be instituted.

The Applicant's grievance arises from the refusal of his request for an extension of time to pay duty and, ultimately, the disposal of his motor vehicles by public auction. The Applicant was formally advised of the refusal of his request on 8 January 2024. That date, in the court's view, marks the point at which the cause of action arose. A cause of action has been defined as the entire set of facts which entitle a litigant to seek relief from the court (See Abrahams & Sons v SA Railways & Harbours 1933 CPD 626 at 637). On the Applicant's own version, by 8 January 2024, he was aware that: his request for an extension had been refused; and his vehicles had already been disposed of by public auction. The Applicant was therefore fully armed with all material facts necessary to institute review proceedings.

Applying s 196(2), the Applicant was required to institute proceedings within eight months from that date, that is, on or before 8 September 2024. The present application was filed well outside that statutory period. The Applicant seeks to cure this defect through an application for condonation, attributing the delay to ill health. However, this argument is fundamentally misplaced. Where a claim has prescribed by operation of statute, there is no longer a legally cognisable right capable of enforcement. Prescription extinguishes not merely the remedy, but the right itself.

The law on prescription is settled. In *Lusunzi* v *Blue Ribbon Foods Ltd* 2000 (1) ZLR 405 (S), the Supreme Court underscored that prescription is not merely procedural but serves to extinguish a right of action after the lapse of the prescribed period. Likewise, in *UDC Ltd* v *Shamva Flora (Pvt) Ltd* 2000 (2) ZLR 210 (S), the court emphasised that once a claim has prescribed, it is no longer enforceable at law.

In these circumstances, condonation cannot revive a cause of action that has already been extinguished by law. To hold otherwise would defeat the clear intention of the legislature in enacting a peremptory time bar.

The position has been consistently affirmed in the authorities cited by the Respondents, to the effect that courts will not entertain matters where the underlying right has prescribed, as doing so would amount to determining abstract or academic questions. Accordingly, this Court finds that the Applicant's claim has prescribed and is no longer properly before the Court. This finding is dispositive of the matter.

A party seeking condonation for the late filing of proceedings bears the onus of satisfying the court that sufficient cause exists for the indulgence sought. The requirements for condonation are well established. The applicant must provide a full, detailed and satisfactory explanation for the delay; demonstrate that the application has been made *bona fide* and without undue delay; and show reasonable prospects of success on the merits. In considering whether condonation ought to be granted, the court exercises a judicial discretion upon a consideration of all the relevant circumstances, including the extent of the delay, the adequacy of the explanation tendered, the importance of the matter, the prejudice to the parties, and the prospects of success. (See United Plant Hire (Pvt) Ltd v Hills 1976 (1) SA 717 (A) at 720E-G; Kodzwa v Secretary for Health & Anor 1999 (1) ZLR 313 (S)). In the present matter, even assuming the Applicant's explanation based on ill health were acceptable, condonation cannot be granted where the underlying cause of action has already been extinguished by prescription.

In light of the conclusion on prescription, it is strictly unnecessary to determine the remaining preliminary objections. However, for completeness, in brief; the Respondents' challenge to the validity of the founding affidavit raises serious concerns, particularly regarding the absence of a properly attested oath and non-compliance with the Rules of Court. Such defects, if established, would render the application fatally defective.

Similarly, the issue of misjoinder of the second to fourth Respondents is not without merit, given that the Zimbabwe Revenue Authority is, by statute, the entity clothed with legal personality capable of suing and being sued.

Be that as it may, these issues pale into insignificance in light of the finding on prescription, which extinguishes the Applicant's claim *in limine.*

CONCLUSION

The Applicant's claim, having been instituted outside the peremptory eight-month period prescribed by s 196(2) of the Customs and Excise Act, has prescribed and is no longer actionable.

It is ordered;

1. The application for condonation be and is hereby dismissed.

2. The Applicant shall pay costs of suit on the attorney and client scale.

TAKUVA J:……..

Zimra Legal Services, respondent's legal practitioners